

**UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK**

United States v. Luigi Nicholas Mangione
1:24-mj-04375-UA

New York, New York
December 19, 2024

* * * * *

MS. FRIEDMAN AGNIFILO: Yes, your Honor. I would like to follow up on what the government just said and seek clarity on exactly what it is that is happening, because this is a highly unusual situation we find ourselves in.

Yesterday there was a press conference held by the Manhattan District Attorney's Office that was announcing these murder in furtherance of terrorism charges, and there was absolutely no mention that Mr. Mangione was going to be charged federally. In fact, I don't think they even knew that this was going to happen. We were entirely prepared to come to court today for an arraignment. In fact, I was told by the Supreme Court in New York County that it was going to be at 2 p.m. today in New York County in front of Judge Carro. Again, we were entirely prepared to go there and be arraigned on that indictment.

I want to note that the theory of the murder charge in the Manhattan DA case seems to be in conflict with and in opposite to the theory that is here being brought by the U.S. Attorney's Office. There, they talk about terrorism and potentially influencing a group of people. This is stalking an individual. That's what the theory is here. Those are two completely different theories. These seem like different cases.

I find out today that we are -- that all of a sudden we are here in the Southern District of New York facing charges that one charge is death-eligible, and I would like to seek clarity from the government exactly what's happening here. Is there one case? Two cases? Two investigations? Is it a joint investigation? For example, your Honor, if there is a joint investigation, that implicates certain discovery obligations in the Manhattan DA case that they -- that if that case is proceeding, we'll be entitled to discovery. And there are a lot of factors here that I think are very confusing, highly unusual. And in over three decades of prosecuting and defending criminal

cases in New York, frankly, I've never seen anything like that what is happening here, and so any clarity that the government can give Mr. Mangione, we'd really appreciate it.

* * * * *